

Pre-Solicitation Sole Source Notice

TITLE: Simon Draw Diversions

PURPOSE AND PROJECT DESCRIPTION: The Bureau of Reclamation (Reclamation) Western Colorado Area Office, owns a water right taken off Simon Draw originally associated with a location called the Earl Hart Ditch. This subject water right will now be diverted at a new point (Simon Wetlands) downstream of the original diversion point (Earl Hart Ditch) for the irrigation of the Simon Wetlands owned and operated by Reclamation.

Reclamation requires the installation of suitable measuring devices at the original and new diversion points. The existing diversion structure must be modified at the original point of diversion (Earl Hatch), and a new diversion structure must be constructed at the new point of diversion (Simon Wetlands).

The original diversion structure must accommodate and measure up to 3.3 CFS diversion for other existing water rights and the new diversion must accommodate and measure up to 0.5 CFS diversion for the wetlands.

LOCATION: The project is located approximately 5 miles northeast of Cortez in Montezuma County, Colorado.

NAICS AND SIZE STANDARD: The NAICS code for this project is 221310 with a small business size standard of \$41.0M.

COMPETITION: Solicitation 140R4026Q0055 is anticipated to be awarded as a sole source to WCA Construction, LLC IAW DIAR 1480.401(c)(2) which allows awarding sole source requirements to Indian Small Business Economic Enterprises.

INTENDED SOURCE: WCA Construction, LLC 305 Industrial Pkwy., Towaoc, Colorado 81334

SOLE SOURCE JUSTIFICATION: This requirement will be procured IAW FAR 13.106-1 (b)(1)(i) and FAR 6.302-2, Unusual and Compelling Urgency. The State Engineer advised Reclamation on April 6, 2026, that design, procurement, and construction must proceed immediately requiring completion of construction within the 2026 irrigation season. A competitive acquisition would extend the procurement timeline beyond the State-mandated construction window. Under these authorities, full and open competition is not required when competitive procedures would result in serious injury, financial or other, to the government.

SOLICITATION RELEASE DATE: It is not anticipated that the solicitation will be released via the GPE. Interested vendors can request the solicitation by emailing the Government Point of Contact.

SYSTEM FOR AWARD MANAGEMENT (SAM, www.sam.gov): The System for Award Management (SAM) is a recently implemented Federal Government owned-and-operated FREE website. Offerors must be successfully registered in SAM to be considered for a Government contract award.

POINT-OF-CONTACT FOR QUESTIONS: The Point of Contract for this solicitation is the Contracting Officer, Tyler Spencer email: tyler_spencer@ios.doi.gov. Any communication regarding this procurement must be made in writing and forwarded via email and must identify the solicitation number, company name, address, email address, phone number including area code, and point of contact. Emails shall be addressed to the Contracting Officer.

NOTE: Responsible sources may submit a bid, proposal, or quotation which shall be considered by the agency. The Government will NOT be responsible for any costs incurred by interested parties in responding to this Notice. This Notice is strictly for compliance with FAR Subpart 5.2. As a result of this Notice, the Government may issue a solicitation; however, should such requirements materialize, no basis for claims against the Government shall arise as a result of a response to the Notice (e.g. use of such information as either part of its evaluation process or in developing specifications for any subsequent requirement).